

M/s Shree Radhey Radhey Ispat (Pvt.) Ltd. v. Purvanchal Vidyut Vitran Nigam Ltd.

Allahabad High Court · Division Bench · 17 July 2012 · WRIT - C No. - 24474 of 2012 · **Writ disposed of with 30-day direction to decide load-enhancement application; merits not examined.**

HEADNOTE

Industrial consumer sought mandamus after delay on a 2009 application to raise contracted load from 1500 KVA to 2500 KVA, invoking Supply Code clause 4.43 timelines. Division Bench, by consent and without a counter-affidavit, directed the Chief Engineer, PuVVNL, Allahabad, to pass orders within 30 days of a certified copy, expressly without examining the merits of the claim.

FACTUAL SUMMARY

The petitioner industry had a sanctioned load of 1500 KVA. On 10 July 2009 it applied to enhance the contracted load to 2500 KVA. After the Superintending Engineer, Fatehpur, gave a technical feasibility report on 22 April 2012, no decision followed. Citing clause 4.43 of the Electricity Supply Code, 2005, the petitioner said the seven- or thirty-day decision period had long expired, causing hardship. Counsel for PuVVNL appeared; the petition was heard and disposed of by consent without a counter-affidavit.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.43

enhancement of contracted load — time for decision

HOLDING

Where an industrial consumer's application to enhance contracted load from 1500 KVA to 2500 KVA remained undecided despite a technical feasibility report, the Court directed the Chief Engineer, PuVVNL, Allahabad, to pass necessary orders on the application dated 10.7.2009 within 30 days of a certified copy, without examining the merits of the claim. ¶ 1

PRINCIPLE TAGS

relegate-to-statutory-remedy Industrial consumer sought mandamus after delay on a 2009 application to raise contracted load from 1500 KVA to 2500 KVA, invoking Supply Code clause 4.43 timelines.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE CLAIM FOR ENHANCEMENT OF LOAD FROM 1500 KVA TO 2500 KVA
expressly left to the Chief Engineer, PuVVNL, Allahabad, on the application dated 10.7.2009 ¶ 1